

diminished value and “one or more latent defect(s)” do not constitute evidence on summary adjudication. (Compl., ¶¶ 13-14, 42, 44.) Nor does Plaintiff identify evidence of diminution in value at the time of sale. (UF nos. 7-8.) **Accordingly, summary adjudication is granted under Issue no. 8.**

Fifth Cause of Action (negligent repair): In the 5th cause of action, Plaintiff alleges negligent repair. Negligent repair is a form of negligence. A negligence claim requires a legal duty of care, breach of that duty, causation, and damages. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.) Defendants argue that this cause of action fails because it is barred by the economic loss rule. Under the economic loss rule, generally “there is no recovery in tort for negligently inflicted “purely economic losses,” meaning financial harm unaccompanied by physical or property damage.” (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.)

Here, Plaintiff alleges that Palm Springs Ford failed to “properly store, prepare and repair” her Vehicle, owed a duty to use ordinary care and skill in performing those services, and negligently performed them. (Compl., ¶¶ 46-50.) The evidence does not establish, as a matter of law, that Palm Springs Ford owed no independent duty in performing repair services, or that the economic loss rule bars all damages flowing from negligent performance of those services. Plaintiff’s evidence is nevertheless weak. She supplies no expert opinion connecting Palm Springs Ford’s work. Issue no. 9, however, rests only on the economic loss rule. That defense does not completely dispose of the negligent repair claim as a matter of law on this record. **Summary adjudication is therefore denied as to the 5th cause of action.**

6.

CASE #	CASE NAME	HEARING NAME
CVRI2405849	POULTER VS CITY OF BANNING	MOTION FOR ORDER REQUIRING DEFENDANT TO FILE, UNREDACTED, EXHIBITS 5, 11, 14 AND 24, SUBMITTED BY DEFENDANT IN SUPPORT OF ITS MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE FOR SUMMARY ADJUDICATION

Tentative Ruling:

Moving party: Plaintiff Hannah Poulter
Responding party: Defendant City of Banning

This is an employment law case by Plaintiff Hannah Poulter (“Plaintiff”), a police officer, against her current employer, Defendant City of Banning (“City”).

The operative complaint is the Second Amended Complaint (“SAC”), which Plaintiff filed against City on May 6, 2025, alleging causes of action for: (1) Whistleblower Retaliation; (2) Retaliation in Violation of the FEHA [“Fair Employment and Housing Act”]; (3) Discrimination in Violation of the FEHA; and (4) Failure to Prevent Discrimination in Violation of FEHA.

On June 29, 2026, City moved for summary judgment, or in the alternative, summary adjudication of the SAC (“MSJ”). In support of its MSJ, City filed 24 exhibits. At issue here are Exhibits 5 (transcript excerpts from Deposition of Plaintiff Hannah Poulder, Vol. 2), 11 (memorandum from Nicole Jews to Plaintiff, dated January 10, 2024, titled “Notice of Closure of Administrative Investigation”), 14 (email from Nicole Jews to Plaintiff dated August 5, 2025, titled “Follow-up: Amended Claim”), and 24 (memorandum from Lisa Rossi to Plaintiff dated January 15, 2026, titled “Request for Disposition”).

On August, 5, 2026, the Court denied Plaintiff’s ex parte application to advance time to hear the underlying motion, finding there was no immediate danger or irreparable harm. The Court further noted that Plaintiff should have unredacted copies of Exhibits 5, 11, and 24.

Plaintiff now moves to compel City to file and serve unredacted versions of Exhibits 5, 11, 14, and 24, arguing that City filed the redacted documents without an accompanying motion to seal in violation of California Rules of Court, Rule 2.551. Plaintiff acknowledges that she has unredacted copies of Exhibits 5, 11, and 24 from prior discovery disclosures, but seeks to compel service of an unredacted version of Exhibit 14, which Plaintiff contends she has never received in unredacted form.

In opposition, City contends that Plaintiff possesses unredacted versions of all the exhibits, as Exhibit 14 is an email containing communications between City’s counsel and Plaintiff’s counsel, and as such, is in the possession of Plaintiff’s own counsel. City further argues that the exhibits do not need to be sealed under Rule 2.550 because they are statutorily protected from disclosure by Penal Code § 832.7(a).

In reply, Plaintiff argues that City does not support their argument that the documents are protected by statutory confidentiality, and repeats the arguments in the underlying motion.

Analysis

Plaintiff brings this motion against City under California Rules of Court, Rule 2.551(h), which governs motions to unseal records. Specifically, Plaintiff argues that City’s redacted exhibits constitute sealed records that City filed in violation of California Rules of Court, Rule 2.551, which states that the procedure for filing records under seal requires court approval.

California Rules of Court, Rule 2.550, which governs sealed records, states in pertinent part:

(a) Application

- (1) Rules 2.550-2.551 apply to records sealed or proposed to be sealed by court order.
- (2) These rules do not apply to records that are required to be kept confidential by law.
- (3) These rules do not apply to discovery motions and records filed or lodged in connection with discovery motions or proceedings. However, the rules do apply to discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings.

Here, the exhibits at issue are neither sealed nor proposed to be sealed. As such, Plaintiff cannot move to unseal them under Rule 2.551(h). Plaintiff's entire motion is premised on Rule 2.551. Accordingly, Plaintiff's motion is procedurally defective.

To the extent that Plaintiff appears to argue that the redacted exhibits are equivalent to sealed records, Rules 2.550 and 2.551 do not apply to records that are required to be kept confidential by law. Under Penal Code section 832.7(a), "the personnel records of peace officers and custodial officers and records maintained by a state or local agency pursuant to Section 832.5, or information obtained from these records, are confidential and shall not be disclosed in any criminal or civil proceeding except by discovery pursuant to Section 1043 and 1046 of the Evidence Code," also known as a *Pitchess* motion. "Personnel records" include "employee advancement, appraisal, or discipline," "complaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties," and "any other information the disclosure of which would constitute an unwarranted invasion of personal privacy." (Penal Code § 832.8(a)(4)-(6).)

Exhibit 5

Exhibit 5 is an excerpt from the second volume of Plaintiff's deposition transcript, and redacts the names of several officers whose access to city facilities had been restricted. (City's Exhibit 5-3 to 5-5.) Plaintiff testified that several of these officers were on administrative or medical leave. (*Id.*) Because personnel records include employee discipline and medical history (Penal Code §§ 832.8(a)(2) and (a)(4)), the names of officers who were out on administrative or medical leave are confidential under Penal Code §§ 832.7 and 832.8(a), and as such, are not subject to seal under Rules 2.550 and 2.551.

To the extent that the redacted officers were out on a different type of leave, City argues that the identification of these officers invades their third party privacy rights in their personnel records. "The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citations.] The party seeking information may raise in response whatever legitimate and important countervailing

interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.)

Here, feasible alternatives to unredacting the names in Exhibit 5 exist, and have already been accomplished. Specifically, Exhibit 5 contains excerpts from Volume II of Plaintiff’s deposition, which Plaintiff and her counsel both attended. As such, Plaintiff knows the names of the redacted officers, as she was directly asked about them and responded. Indeed, Plaintiff concedes that she “is able to identify what information was redacted from, Exhibit Nos. 5, 11 and 24, based on prior disclosures.” (Motion, p. 4.) Thus, balancing the competing considerations weighs against unredacting the names in Exhibit 5.

Exhibits 11 and 24

City contends that the redactions in Exhibits 11 and 24 are limited to officer identities and related information contained in, or derived from, peace officer complaint or personnel records that are required to be kept confidential by law, specifically Penal Code §§ 832.7 and 832.8, and as such, are exempt from the sealing requirements of Rules 2.550 and 2.551.

Indeed, Exhibit 11 is a “Confidential Memorandum” regarding City’s “Notice of Closure of Administrative Investigation” that informed Plaintiff of the findings of an independent investigation into Plaintiff’s complaints against several officers. Exhibit 24 is a “Confidential Memo” that outlines the detailed findings of the investigation.

Although Plaintiff argues that these memoranda are not personnel records, the statutory definition of “personnel records” includes “complaints, or investigations of complaints, concerning an event or transaction in which he or she participated, or which he or she perceived, and pertaining to the manner in which he or she performed his or her duties.” (Penal Code § 832.8(a)(5).) Here, both memoranda directly address the findings of the investigations into Plaintiff’s complaints against the redacted officers pertaining to the manner in which they performed their duties, and as such, are required to be confidential by Penal Code § 832.7 and therefore exempt from the sealing requirements of Rules 2.550 and 2.551. Thus, City is not required to comply with Rules 2.550 and 2.551 as to Exhibits 11 and 24.

As noted above, Plaintiff acknowledges that she “is able to identify what information was redacted from, Exhibit Nos. 5, 11 and 24, based on prior disclosures.” (Motion, p. 4.) Accordingly, it is unclear why Plaintiff is seeking to unredact the names from Exhibit Nos. 11 and 24, as she possesses an unredacted version of the documents, and the information is not subject to seal under Rules 2.550 and 2.551.

Exhibit 14

Exhibit 14 is an email thread titled, “FOLLOW-UP: Amended Claim,” in which City’s Human Resources (“HR”) department emailed Plaintiff to discuss her claim of

continual harassment and discrimination, as reflected in the SAC. (City's Exh. 14-2.) The first page of Exhibit 14 is completely redacted. (City's Exh. 14-1.) Plaintiff contends that she has never received an unredacted version of Exhibit 14. However, Rules 2.550 and 2.551 "apply to discovery materials that are used at trial or submitted as a basis for adjudication of matters other than discovery motions or proceedings." (C.R.C., Rule 2.550(a)(3).) Because City does not rely on the redacted portion of the email in support of its MSJ, it is not required to seal it.

Further, City contends that the redacted portion of the email consists of communications between Plaintiff's counsel and City's counsel, and that Plaintiff's counsel possesses the entire email exchange because he was a sender, recipient, or participant in the redacted portion. (Oldendorph Decl., ¶ 11.) Despite acknowledging that she does not know what has been redacted, Plaintiff insists that she has not received an unredacted copy of the document, and contends that Defendant's assertion that Plaintiff should have received it establishes that it is relevant and material, and that there is absolutely no justification for the redaction. (Reply, p. 2.) Plaintiff's conclusion is speculative at best, as it is completely unsupported by any factual or legal authority.

Given the above, the Court denies the motion to unredact Exhibit 14.

The motion is denied in full.

7.

CASE #	CASE NAME	HEARING NAME
CVRI2506622	PICAZO VS CITY OF CORONA	MOTION FOR LEAVE TO AMEND CROSS COMPLAINT

Tentative Ruling:

Moving party: Defendant City of Corona

Responding party: Plaintiffs Gilberto Picazo and Lizbet Alvarez

This action arises out of a motor vehicle accident. On November 24, 2025, Plaintiffs Gilberto Picazo ("Picazo") and Lizbet Alvarez ("Alvarez") (together "Plaintiffs") filed a Complaint against Defendants City of Corona ("City") and Maria Jose Herrera ("Herrera") (together "Defendants") for motor vehicle negligence. In the Complaint, Plaintiffs allege that on October 27, 2024, Herrera, while in the course and scope of her employment with City, was driving a police vehicle owned by City without its lights and sirens, and negligently failed to yield at a clearly posted stop sign and then struck the vehicle driven by Picazo in which Alvarez was a passenger, causing injuries to Plaintiffs. (GN-1.)

City was served with the Summons and Complaint on March 25, 2026, and on April 23, 2026, Defendants filed an Answer to the Complaint.

City now moves for leave to amend to file a Cross-Complaint against Picazo arising out of the vehicle accident that is the subject of the Complaint.